Montgomery County District Court

Cause No. 2025-CV-0004

Diana Davis, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	February 27, 2025
Plaintiff's counsel:	Michael Duncan, Bauer & Bryant Law Group

PARTIES

Plaintiff Diana Davis is an individual residing in Texas who was injured in a motor vehicle collision. Defendant is an automobile insurance company authorized to write policies in Teaxs and doing business in the State of Texas. Defendant may be served through its registered agent for service of process.

FACTS

On March 5, 2023, Plaintiff was lawfully operating a passenger vehicle on a public roadway in Sugar Land, Texas. At the same time, a third-party driver operating a vehicle insured by Defendant failed to yield the right of way, enetred the intersection, and struck the side of Plaintiff's vehicle. The collision was reported to Defendant, which accepted the claim for its insured and assigned an adjuster to the file. Despite Plaintiff's repeated requests for a fair settlement, Defendant has delayed evaluation, requested duplicative records, and has not tendered a reasonable offer.

NEGLIGENCE

The at-fault driver owed a duty to exercise ordinary care in operating a motor vehicle, including yielding the right of way as required by Texas law. That duty was breached when the driver failed to yield and caused the collision. Defendant, as the liability insurer of the at-fault driver, is obligated under its policy and Texas law to pay covered damages up to policy limits and to handle claims in good faith. Defendant breached its duty of good faith and fair dealing by unreasonably delaying payment and failing to adequately investigate and evaluate the claim.

DAMAGES

As a direct result of the collision, Plaintiff suffered serious and permanent injuries. Plaintiff has incurred substantial medical expenses, lost wages, and loss of earning capacity, and has experienced physical pain, mental anguish, and impairment of qualtiy of life. Plaintiff will require future medical care, including ongoing treatment, therapy, and possible surgical intervention, the costs of which are expected to continue for the remainder of Plaintiff's life. Plaintiff therefore seeks damages in the amount of $74,100.00, together with pre-judgment and post-judgment interest, court costs, and all other relief to which Plaintiff may be entitled.